Crossy Road Privacy Policy

At Hipster Whale Pty Ltd (Australian Business Number: 74 601 793 275) (defined here as 'We', 'Us' or 'Our'), We recognise the importance of your privacy and understand the concerns surrounding security of personal information.

This Privacy Policy sets out how We collect, use and disclose "personal information" and other "non-personal information" We have gathered about you about you in relation to Our game "*Crossy Road*", ("Game" which term includes the associated website).

By using our Game, you acknowledge and consent to the terms of this privacy policy.

This policy will let you know:

- **What information (often referred to as ‘data’) is collected from you;**
- **How your information is used;**
- **With whom your information may be shared;**
- **How you can access, update, or delete your information.**

We will comply with all relevant and applicable legislative requirements, and, in the event of any inconsistency, the legislative requirements will override the provisions of this document.

User Age Limits

Our games and Our website are not aimed at children under 13 years of age. Nevertheless, We acknowledge that our Game may unintentionally appeal to children.

An age gate is in place at the launch of the Game, which shall direct each user to the part of the Game that is applicable to the user’s age bracket.

We do not collect any personally identifiable information within the age

gated part of Our Game for children, nor do We intentionally direct interest-based advertising to anyone under the age of 13 years.

If you believe that We have inadvertently collected information from a person under the age of 13, please contact Us at the email address below and the information will be permanently deleted. We do not permit behaviourally targeted advertising to children under the age of 13 years.

What data do we collect?

We collect data in three ways.

A. Data collected automatically;

B. Data you provide us; and

C. Data collected by our partners.

The basis for collecting data is "legitimate interest" under GDPR (Global Data Protection Regulation) and "to support internal operations of the game" under COPPA (Children's Online Privacy Protection Act). Any data collected is done solely for internal uses that are reasonably and directly related to your relationship

with US, in accordance with the California Consumer Privacy Act (CCPA).

A. Data collected automatically

Certain data is collected automatically. This includes:

- **Data about your game progress;**
- **Data about your device, such as device name and operating system, browser type and language;**
- **Data about your use of the Service, such as gameplay data and your interactions with other players inside the Service; and**
- **Your IP addresses, and mobile device identifiers (such as your device ID, advertising ID, MAC address, IMEI). Please note, there are ways to prevent this, which are outlined at 'Third Party Service Providers' below.**

B. Data you provide us

We collect and store your email when you sign up for Our newsletter, or

where you nominate to specifically allow Our games to collect your player name and your email. We will also keep your contact details if you contact Us for a particular purpose.

Competitions and Giveaway

From time to time, We may run competitions, giveaways or other promotional events. If you choose to enter, you will be asked to provide personal information such as your name and email address via an entry form hosted on Google Forms. This information will be used solely for the purpose of administering the competition, contacting winners, and delivering prizes. More information about Google Forms, including its privacy policy can be found here: https://transparency.google/intl/en/our-policies/product-terms/google-forms/

We will only retain personal information collected through competition entry forms only for as long as necessary to administer the competition, verify eligibility, contact winners, and fulfil any associated obligations (such as prize delivery).

Newsletters Mail-Outs and Promotional Materials

When you opt in to join Our mailing list for the purpose of receiving Our newsletter, We will use that to provide you with direct marketing communications about upcoming games, features of Our websites and other events and promotions related to Our products.

You may unsubscribe from Our newsletter at any time. All you need to do is unsubscribe from the link in the letter, or let Us know in writing, via emailing Us at prviacy@hipsterwhale.com that you want to be removed.

If you wish to receive promotional information from Us, you will be asked to provide your email address to Us. This information is gathered by a third-party partner that collects and compiles that information for us so that we may undertake mail outs to large numbers of people. The third-party partner that We use to create and send promotional information is Mail Chimp. The MailChimp Privacy policy can be

found here: https://mailchimp.com/legal/privacy/

C. Data we collect from our third-party partners

To operate and manage Our services We need to use third party service providers from time to time. A list of those parties can be found in this privacy policy. The type of information We might collect from them includes:

- Data we receive if you link a third-party tool with the Service (such as logging in via Facebook, or Google);
- Demographic data (to determine the coarse location of your IP address)
- Data from platforms that the games run on; and
- Data for advertising and analytics purposes.

How do we use the data we collect?

Data collected can be personal to you or non-personal, and sometimes data that doesn't appear to be personal can become personal if certain other facts are learned. No matter how We

come to collect your data, We will always treat it in accordance with this document, and any applicable legislation.

What is Personal Information?

'Personal Information' is information that identifies you as an individual. This is only collected by Us if you submit it to Us directly. We note that this does not mean that the Game itself does not collect data, rather We do not collect personal information from you.

Player Feedback

If you contact Us with a comment or query, We keep a copy of any personal information you provide. This is so that We can respond to your comments and questions as a part of Our commitment to providing you with player support. If you contact Us directly for any reason, We also keep a copy of that correspondence.

What about Sensitive Information?

Sensitive information includes information about such things as an

individual's racial or ethnic origin, political opinions, membership of a political association, religious or philosophical beliefs, membership of a professional body, criminal records or health information.

We will not attempt to obtain nor record any sensitive information.

Third Party Service Providers

Apart from Us, your data is accessible by Our third-party providers in the following circumstances. Our Game includes services from third-party providers such as functionalities through application programming interfaces (APIs), Software Development Kits (SDKs) and in-app advertising. These third-party providers may access your data and operate under their own privacy policies. We encourage you to review their privacy policies (listed below) before interacting with our Game.

APIs

Amazon Web Services: https://aws.amazon.com/privacy/

SDKs

Apple:
https://www.apple.com/legal/privacy/pdfs/apple-privacy-policy-en-ww.pdf

Advertising

Advertisements from third party ad networks may be displayed in Our Games from time to time. All reasonable endeavours are used to ensure that these ad networks comply with all applicable legislation in the provision of their services towards us. If you click on any advertisements through Our Game, the advertisers may use cookies and other web-tracking technologies to collect data, to provide targeted advertisements to you. Some of this may be personal information, and some of it non-personal information. We recommend that you review the terms of use and privacy policy for any advertiser with whom you are interacting before doing so.

The list of our ad networks privacy policies may be found here:

Amazon Publisher Services:
https://www.amazon.com/gp/h

elp/customer/display.html/ref=footer_privacy?ie=UTF8&nodeId=468496

AppLovin: https://www.applovin.com/privacy/

Liftoff: https://liftoff.io/privacy-policy/

ironSource: https://unity3d.com/legal/privacy-policy

Google AdMob: https://policies.google.com/technologies/partner-sites

Unity: https://unity3d.com/legal/privacy-policy

Facebook Audience Network: https://www.facebook.com/about/privacy

Digital Turbine: https://www.digitalturbine.com/privacy-policy/

InMobi: https://www.inmobi.com/privacy-policy/

Ogury: https://ogury.com/privacy-policy/

KidOz:
https://www.kidoz.net/privacy-policies#SDK-privacy-policy

Opting out of Targeted Advertising

You can opt-out of interest-based advertising on mobile applications by checking the privacy settings of your Android or iOS device and selecting "Limit Ad Tracking" (Apple iOS) or "opt-out of interest-based ads" (Android). This will also prevent mobile device identifiers from being collected.

Collection of other 'Non-Personal' Information

Some non-personal information may be gathered while you use Our games. Non-personal information is general, non-identifiable and anonymous information that is gathered for statistical, analytical and research purposes such as the improvement of our games (for example, bug fixes).

Though We do not use cookies in order to track your movement around the web, Our websites (http://www.hipsterwhale.com and

http://www.crossyroad.com) use Google Analytics to help analyse how users use these sites. The tool uses cookies to collect internet log information and general visitor behaviour information in an anonymous form. The information generated by the cookie about your use of the website, including your IP address, is transmitted to Google. This information is then used to evaluate use of our website and to compile statistical reports on website activity.

The Google Analytics privacy policy can be found here:

Google Analytics: https://policies.google.com/privacy

Our websites and apps may also contain APIs from other third parties. We do not control how they interact with you and you should ensure that you consent to their terms of use and privacy policies offered by the third party services before providing them with your information.

Our third-party partners, and their privacy policies are as follows:

App Follow:
https://get.appfollow.io/privacy
App Figures:
https://appfigures.com/privacy
Unity Analytics:
https://unity3d.com/legal/privacy-policy
Apple:
https://www.apple.com/legal/privacy/en-ww/
Google Play:
https://policies.google.com/technologies/partner-sites |
https://policies.google.com/privacy
Tenjin:
https://www.tenjin.com/privacy/
LevelPlay
https://unity3d.com/legal/privacy-policy
Firebase:
https://firebase.google.com/support/privacy
Crashlytics:
https://firebase.google.com/terms/crashlytics/
AppHarbr:
https://appharbr.com/privacy-policy/

Geoedge: https://www.geoedge.com/privacy-policy/

Access, Deletion and Correction of Your Personal Information.

Regardless of how We come in contact with your data, you have the right to request access to any personal information We hold about you. You may request access to the information We hold about you by contacting Us via email at privacy@hipsterwhale.com. If at any time You believe that personal information about You is incorrect, incomplete or inaccurate, You may request that We amend such information. If We refuse your request, We will provide you a written notice which will outlines the reasons for such refusal and the complaint mechanisms available to you.

You may also request that We delete any personal information We hold about You by contacting Us via email at privacy@hipsterwhale.com

Data Subject Requests

In the event that you send a data subject request to Us, or one of Our third-party partners informs Us that you have contacted them directly about your personal data they collected while you were using our service, We will respond to that request in accordance with any applicable legislation.

If you wish to know what data We hold about you, if any, please make out your request to Us in writing at the address listed below. Please be aware that in order to protect the information in Our database, We will require identification from you before releasing any information.

Disclosure and Security of Your Information

We will not sell, trade, rent or disclose any of the personal information you provide to us for any reason, without your prior consent. Otherwise, your Personal Information will only be disclosed where required or allowable by law.

Your Personal Information is stored offsite in a manner that reasonably protects it from misuse, loss,

unauthorised access, modification or disclosure.

International Transfers of Your Information

Given that our Game is globally accessible, there are times where your data may need to be transferred across different jurisdictions. However, we will not transfer your personal information across jurisdictions, unless:

- **You have provided your consent; or**
- **It is necessary to complete a transaction in Our Game; and**
- **We believe that the recipient of such information is subject to a law, or a binding scheme, that has the effect of protecting your information in a way that, overall, is at least substantially similar to the way in which the Australian Privacy Principles (APPs) protect information; and there are mechanisms you can access to take action to enforce that protection of the law or binding scheme; or**

Where otherwise allowed by any applicable legislation.

Policy Updates

This Policy may change from time to time. The most current version of our Privacy Policy can be found at http://crossyroad.com/privacy. We will always keep this up to date so that you know what information we will collect from you, how we may use it, and when we may disclose it.

Complaints

You can lodge a complaint with us about any breach of our Privacy Policy at the address below.

Privacy Policy Contact Information

If you have any questions about our Privacy Policy, please contact us at: privacy@hipsterwhale.com

Office of the Australian Information Commissioner

Phone: 1300 363 992 (local call cost, but calls from mobile and pay phones may incur higher charges). If calling

from overseas (including Norfolk Island): +61 2 9284 9749

TTY: 1800 620 241 (this number is dedicated to the hearing impaired only, no voice calls)

TIS: Translating and Interpreting Service: 131 450 (If you don't speak English or English is your second language and you need assistance and ask for the Office of the Australian Information Commissioner)

Post: GPO Box 2999 Canberra ACT 2601
Fax: +61 2 9284 9666
Email: enquiries@oaic.gov.au

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